

The Students Code of Conduct Handbook



nurturing innovators

Riara
University



A man without ethics is a wild
beast loosed upon this world.
Albert Camus

Table of Contents

1.0. PRELIMINARY	4	11.0 ALTERNATIVE OPTIONS FOR RESOLVING DISPUTES	19
1.1 Definitions	4	12.0 PARTICIPATION OF THE STUDENTS' UNION	21
1.2 Responsibility for Implementation	4	13.0 STUDENT WELFARE SERVICES	21
1.3 Oversight and Enforcement	5	13.1 Counselling Services	21
1.4 Scope and Compliance	5	13.3 Accommodation	21
1.5 Duration	5	13.4 Student Centre	22
1.6 Bond of Good Conduct	5	13.5 Sports	22
2.0. GENERAL CONDUCT	6	13.0 MISCELLANEOUS PROVISIONS	23
3.0 RIGHTS OF THE STUDENTS	7	APPENDIX 1: DECLARATION BY THE STUDENT	24
4.0 OBLIGATIONS OF STUDENTS	8	APPENDIX 2: STUDENT'S BOND OF GOOD CONDUCT	25
5.0 RELIGIOUS FREEDOM	10		
6.0 EXPECTATIONS ON STUDENT CONDUCT	11		
7.0 THE DRESS CODE	12		
8.0 DISCIPLINARY MATTERS	13		
8.1 Disciplinary Authority	13		
8.2 Prohibited Conduct	13		
8.3 Principle of Natural Justice and Fairness	16		
8.4 Disciplinary Process	16		
8.5 Penalties and Disciplinary Measures	17		
8.6 Communication of Decisions of the SDC	17		
9.0 APPEALS	18		
10.0 SAVING CLAUSE	19		

1.0

Preliminary



1.1 Definitions

In these Rules and Regulations for Student Conduct and Discipline:

“Student” shall mean and include:

- (a) Any person admitted to Riara University who has been registered and entered into the nominal roll to study for an academic programme leading to the award of a certificate or diploma, or the conferment of a degree;
- (b) Any student who may have transferred to Riara University from another University and has been duly admitted and registered as a student;
- (c) All occasional students (e.g. students on exchange programme) who are registered in another University but are pursuing some courses at Riara University as part of their academic programme.

“Staff member” ” means any employee of the University employed under University terms and conditions of service, regardless of level or grade.

“Disciplinary Committee” means the Senate Disciplinary Committee responsible for hearing and determining disciplinary issues relating to students.

“University premises” means any location, building or space designed for University activities on a permanent or temporary basis.

1.2 Responsibility for Implementation

The Office of the Dean of Students shall be responsible for the development, revision and interpretation of all the provisions in these Rules and Regulations for Student Conduct and Discipline.

1.3 Oversight and Enforcement

The University Senate and Governing Council shall give guidance and provide oversight for the enforcement of all the provisions contained in these Rules and Regulations for Student Conduct and Discipline.

1.4 Scope and Compliance

The Rules and Regulations and all stipulations contained in the Rules and Regulations for Student Conduct and Discipline shall apply to all students admitted and registered at Riara University and any of its colleges, campuses, and centres as may be established from time to time. Each and every student shall be required to read, understand and append their signature to signal their acceptance and undertaking to abide by all the stipulations contained in the Rules and Regulations for Student Conduct and Discipline.

1.5 Duration

The stipulations contained in the Rules and Regulations for Student Conduct and Discipline shall take effect and be binding upon the registration of the student, and shall remain in force as long as the student remains so registered.

1.6 Bond of Good Conduct

- a) Every student shall formally bind himself/herself to observe the stipulations contained in these Rules and Regulations for Student Conduct and Discipline by signing the Declaration and Bond of Good Conduct upon registration;
- b) Failure or refusal to comply with Clause 1.6(a) may constitute sufficient grounds for denial of registration;
- c) That notwithstanding, nothing in these Rules and Regulations for Student Conduct and Discipline shall preclude the University from requiring any student to execute any bond, assurance or undertaking to be of good conduct throughout his/her stay at the University;
- d) Such bond, assurance or undertaking when required and executed shall have the same effect as if it were part and parcel of these Rules and Regulations for Student Conduct and Discipline.

Failure or refusal to comply with Clause 1.6(a) may constitute sufficient grounds for denial of registration

2.0 General Conduct

It is also expected that students will learn to deal with each other and with the community at large with fairness, honesty, respect and accountability

2.1 General Expectations

Riara University strives to build an academic community that is anchored in positive foundational values that include not only scholarly excellence, but also of ethical behaviour, moral rectitude and integrity. Hence, Riara University places a premium on these personal characteristics among its staff and students. Whereas academic integrity defines the overall demeanour of students at Riara University, it is also expected that students will learn to deal with each other and with the community at large with fairness, honesty, respect and accountability.

2.2 Academic Conduct

All students of Riara University are expected to apply themselves diligently to the courses of study approved by the Senate and for which they are registered, and shall, in particular:

- (a) (a)Attend lectures, tutorials, seminars, practicals, examinations and other scheduled activities. It is the duty of the student to make arrangements to attend such events. A class attendance register shall be kept for this purpose. Reasons for failure to attend classes should be communicated in writing to the course instructor and Chair of the Department. Unauthorized absence from lectures or other scheduled academic sessions will result in disciplinary action.
- (b) Record class attendance. A class attendance register shall be kept for this purpose. Absence for a period totalling to more than twenty percent (20%) of the course duration is considered as absence for the whole course. Such absence, unless requested for and prior permission granted in writing by the academic Registrar as a deferment of studies for a specific period, shall be treated as self-deregistration by the student and ratified as such.

- (c) Apply for leave of absence from studies if necessary. Absence should be forwarded through the Chair of Department and Dean of School for approval by the Academic Registrar.
- (d) Punctuality is a hallmark of good discipline and is expected of all students.
- (e) Refrain from any conduct whose objects or logical consequences are tantamount to disrupting the smooth operation of the programmes of the University.
- (f) Comply with all other regulations made by the relevant University Officers, Departments or Schools for the furtherance of the objectives of the University.

Rights of Students 3.0



- 3.1 The student, as a citizen of this country, is entitled to all the basic Human rights as enshrined in the Constitution of the Republic of Kenya.
- 3.2 The student has a right to good education and value for money.
- 3.3 The student has a right to access good and adequate medical services, recreational facilities, essential utilities and transport in the pursuit of officially sanctioned activities.

4.0 Obligations Of Students

Principally, students are registered at Riara University to acquire relevant university-level knowledge and appropriate skills in their selected professional disciplines. The student's fundamental obligation is therefore to participate fully in all activities and programmes planned by the University to realize this goal. To facilitate this, the student shall be expected to adhere to the following obligations:

Honour and respect the rights and freedoms of other members of the University community and the public at all times and places;

- a) Actively contribute to the creation and maintenance of supportive learning environment characterized by, among other things, academic diligence, order and discipline, inclusivity and tolerance. In addition, all students are expected to deal with one other and with the community at large in a fair, honest, respectful and accountable manner;
- b) Honour and respect the rights and freedoms of other members of the University community and the public at all times and places;
- c) Comply with any and all lawful instructions given by a duly authorized officer of the University, both Academic and Administrative, in whatever forms it is issued;
- d) Act responsibly in the interest of public safety and welfare.



Action indeed is the sole
medium of expression for
ethics. Jane Adams

5.0 Religious Freedom

- 5.1 Riara University's mandate is the pursuit of secular education.
- 5.2 Students from whatever religious background shall be allowed to practise their faith without hindrance, so long as these practices do not make demands on, or interfere with the smooth running of the University life in general, and University academic programmes in particular. All students are expected to accord due respect and exhibit tolerance towards members of the different faiths amongst.

Students from whatever religious background shall be allowed to practise their faith without hindrance, so long as these practices do not make demands on, or interfere with the smooth running of the University life in general

Expectations on Student Conduct 6.0

- 6.1 All students of Riara University are expected to behave at all times as good and responsible individuals. Students are expected to refrain from any conduct which would bring themselves, their colleagues or the University into disrepute.
- 6.2 Students may be held accountable to the University in their relationship with members of the general public, and their conduct and utterances in matters that lie in the public domain which, in the view of the University, are deemed to affect the name, reputation, integrity of the University or its programmes.
- 6.3 All correspondence to the Press or other forms of mass media by students or officials of the Students' Organization shall bear their names and private addresses and NOT those of the University.
- 6.4 All public statements affecting the University which are intended to be issued on behalf of any student organization or association must receive the prior written approval of the Vice Chancellor.
- 6.5 Any invitation to Cabinet Ministers, Members of Parliament, representatives of foreign governments or other public personalities to visit the University in their official capacities shall be channelled through the University Vice Chancellor.



7.0 The Dress Code



Students will be expected to pay careful attention to their choice of dress and adornment while on campus. Personal style and taste should serve to compliment rather than undermine a student's quest for professional identity and success, to which the University is firmly committed.

Among the dress habits which need to be used with careful consideration are as follows:

(a) For men

- (i) Vests which leave the chest bare or clothes that expose the chest and other body parts generally deemed private;
- (ii) Hats/caps while in class/office or at table;
- (iii) Sagging trousers;
- (iv) T-shirts and trousers with obscene wordings and/or expressions; extravagant jewellery and necklaces ("Bling-blings");
- (v) Rings on eyebrows, belly, lips, tongue and nose.

(b) For women

- (i) Excessively short skirts, torn jeans that reveal parts of the body;
- (ii) Bare backs and navel-gazers;
- (iii) See-through articles of clothing; sagging trousers; clothing that expose and/or show inner wear;
- (iv) Bodily grooming should aim at judiciously modest use of lipstick and other personal accessories; avoid use of strong perfumes;
- (v) Jewellery on eye brows, belly, lips, tongue and nose;
- (vi) Excessively bright and peculiar hair colours, e.g. yellows, blues and reds.

Disciplinary Matters 8.0

8.1 Disciplinary Authority

Matters of student discipline shall be handled by the Senate's Students Disciplinary Committee (SDC) of the Senate on behalf of the Governing Council. The SDC shall be constituted as follows:

- | | | |
|----|--------------------------------|-----------|
| a) | DVC (Administration & Finance) | Chair |
| b) | Dean of Students | |
| c) | Dean of respective School | |
| d) | Registrar (AA) | Secretary |
| e) | Two student representatives | |

8.2 Prohibited Conduct

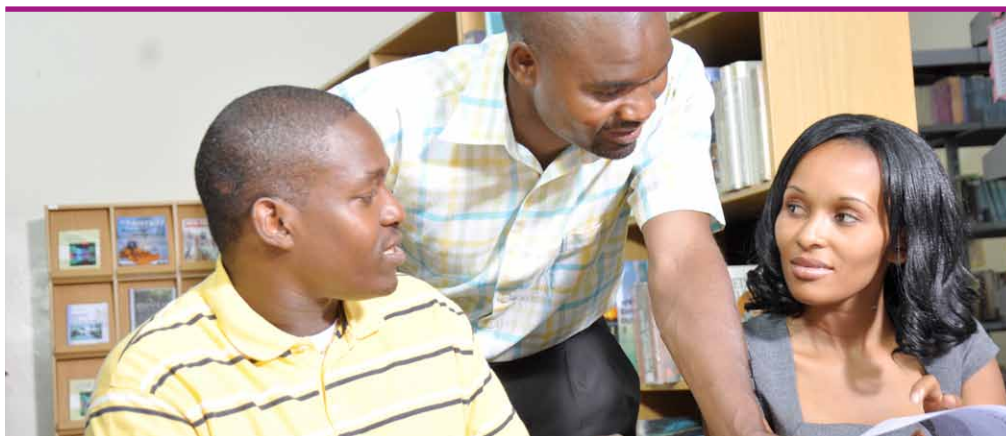
The SDC is an internal University organ for securing compliance to the University's declared policies, values, rules and procedures, and shall in its proceedings only observe universal principles of fairness and natural justice, but not operate as a Court of Law. The schedule of prohibited conduct includes, but is not limited to:

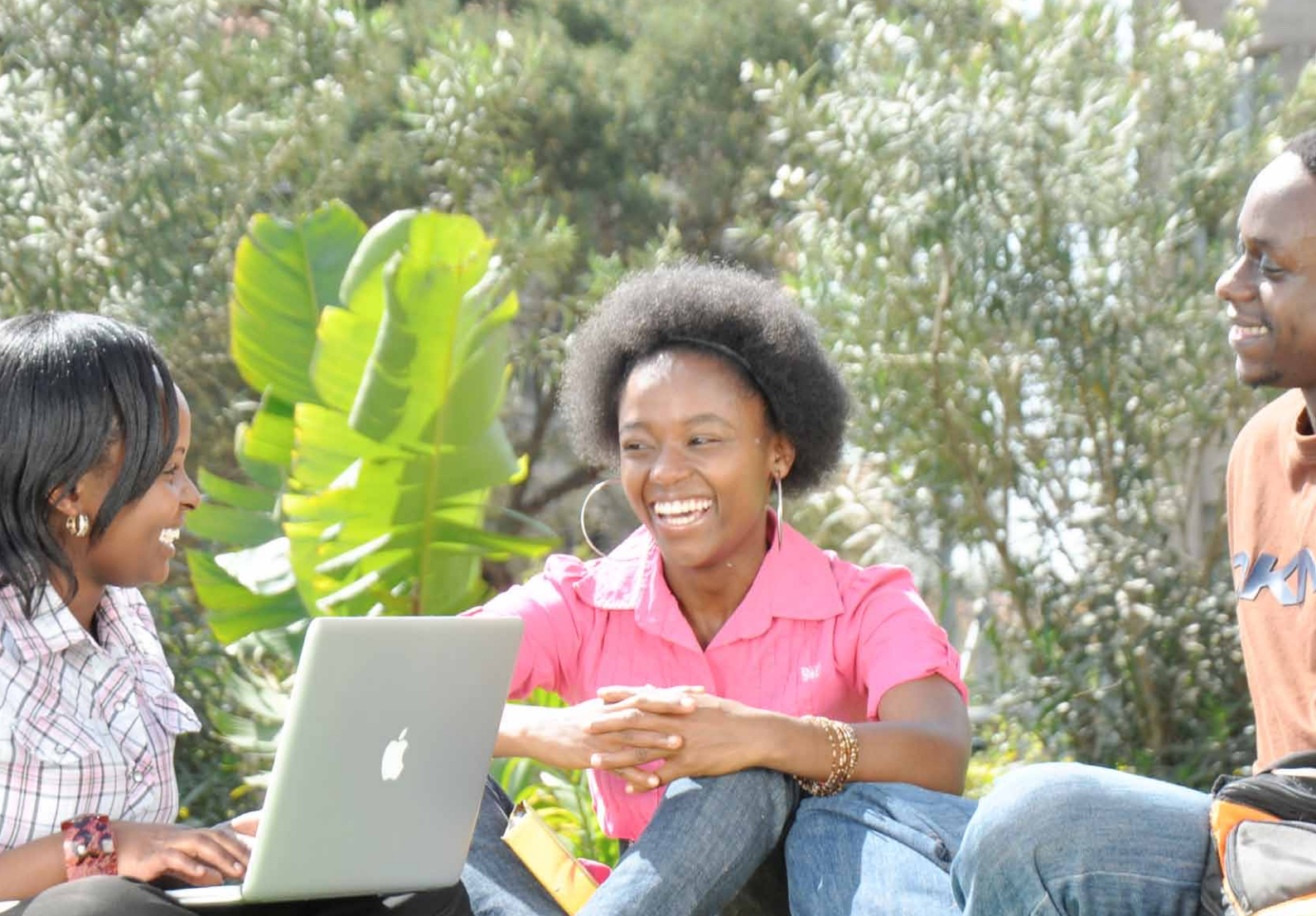
- a) Cheating, dishonesty, falsification, impersonation, plagiarism, or any use of unscrupulous ways to gain academic advantage;
- b) Bringing any dangerous and/or offensive weapons into any premises of Riara University at any time;
- c) Bullying, harassing, molesting or insulting any member of the University community;
- d) Wilful damage to property, whether it belongs to the University, to any member of the University community or the public at large;
- e) Extravagant or inappropriate use of common resources, e.g. water, power, internet, etc;
- f) Hooliganism, fighting, unruly, disorderly or vexatious behaviour;

Cheating,
dishonesty,
falsification,
impersonation,
plagiarism,
or any use of
unscrupulous
ways to gain
academic
advantage

Prohibited Conduct;
Convening,
organizing,
instigating or
attending a
prohibited assembly
or political gathering
within or in the
vicinity of University
premises

- g) Drunkenness, abuse of drugs or other forms of illegal and/or anti-social modes of behaviour;
- h) Slander, gossip, immodesty, nepotism or profanity;
- i) Theft, misappropriation or otherwise unlawfully converting other peoples' property to own use;
- j) Knowingly giving false information;
- k) Falsifying records;
- l) Attempting to circulate, display, affix or distribute a banner, notice, letter, flier or any communication for public consumption within the University premises without lawful authorization;
- m) Convening, organizing, instigating or attending a prohibited assembly or political gathering within or in the vicinity of University premises;
- n) Picketing or organized obstruction of students or staff activities in any manner whatsoever;
- o) Attempting to conceive, design or effect any scheme or strategy of whatever nature whose object or logical consequence is to disrupt the due operation of University programmes.
- p) Inflicting malicious damage to University or private property;
- q) Being convicted in a Court of Law for a criminal offence of such a nature as should, in the opinion of the Governing Council, warrant expulsion from the University;
- r) Engaging in any action which is recognized as a criminal offence under the Laws of Kenya.





Even at school I studied ethics
instead of religion. Ville Valo

The Dean of Students shall institute investigations, or cause investigation to be carried out, to establish the facts about the complaint to the best of his/her ability

8.3 Principle of Natural Justice and Fairness

The SDC is an internal University organ for securing compliance to the University's declared policies, values, rules and procedures, and shall in its proceedings only observe universal principles of fairness and natural justice, but not operate as a Court of Law.

8.4 Disciplinary Process

- (a) The complainant shall submit a written and signed statement of their complaint to the Dean of Students as soon as possible after the offense. The statement should contain all material facts and particulars.
- (b) The Dean of Students shall institute investigations, or cause investigation to be carried out, to establish the facts about the complaint to the best of his/her ability.
- (c) The Dean of Students shall then prepare an official charge, taking into account the scope and interpretation of the stipulations contained in these Rules and Regulations for Student Conduct and Discipline.
- (d) The formal charge shall be submitted to the Chair of the SDC, and a copy given to the student.
- (e) The Secretary to the SDC shall, within a reasonable period, prepare and circulate a brief of the charge to members of the Committee, and summon the student to appear before the Committee on a specified date and venue.
- (f) If so required, witnesses may be summoned.
- (g) The SDC is not a court, and shall not therefore be required to adhere to rules of evidence and procedures applied in a court of law.
- (h) However, the Committee shall ensure that the student is given fair hearing and also that the rules of Natural Justice are observed. Provided, however, that the student shall not be permitted to summon external witnesses, nor be represented by legal counsel.
- (i) Wilful failure by an accused to attend such a hearing constitutes an offence, and the hearing may proceed and arrive at a decision that shall be binding on both parties to the case or

dispute, the absence of the accused party notwithstanding.

- (j) The decision of the SDC shall be communicated to the Chair of Senate, and a report made to the next meeting of the Senate for approval/ratification.

8.5 Penalties and Disciplinary Measures

The SDC may recommend imposition of one or more of the following penalties, depending on the gravity of the offence, and the circumstances under which it was committed:

- a) Written or verbal reprimand or warning;
- b) Compensation of the complainant for the loss or damage inflicted;
- c) Suspension of a student for a period of time not exceeding 3 years;
- d) Exclusion of the student from specified University activity/premises for varying periods;
- e) Acquittal/discharge the student from the charge (s);
- f) Expulsion of the student from the University.
- g) Any other decision as it may deem appropriate.

8.6 Communication of Decisions of the SDC

The recommendation of the Committee shall be communicated to the student in writing as soon as possible after the hearing, but in any case not later than five (5) working days from the date of the recommendation.

8.7 The Vice Chancellor, acting on behalf of the Senate, may:

- a) Vary, or add to the list of disciplinary offenses specified herein, but such variation or addition ceases to have effect unless approved by the next Senate;
- b) Suspend a student at any time after a complaint is made in accordance with this Code of conduct, pending a meeting of the SDC, if in his/her opinion, the offence warrants such suspension.



9.0 Appeals

A student who is the subject of disciplinary measures shall have the right to lodge an appeal against the decision.

- 9.1 A student who is the subject of disciplinary measures shall have the right to lodge an appeal against the decision.
- 9.2 Appeals are addressed in writing to the Chair of Senate within fourteen (14) days from the date of the communication of the Committee's decision.
- 9.3 Upon receipt of such an appeal, the Vice Chancellor shall constitute an ad hoc Appeals Committee to hear the case. Members of the ad hoc committee shall exclude any person who participated in the initial hearing of the case.
- 9.4 During the appeal, no new documentation and/or evidence may be submitted by the complainant. Only the original records will form the basis of the deliberations.
- 9.5 The Appeals Committee may ratify or vary the decisions of the SDC as it may deem appropriate.
- 9.6 The decision of the Appeals Committee is final, and shall be communicated to the student in writing immediately.



Saving Clause 10.0

The provisions of these Rules and Regulations for Student Conduct and Discipline and any decisions made by the SDC shall not derogate from, or prejudice the right of the police or any other member of the public so entitled to bring any action or institute any legal proceedings in respect of the same state of facts against any student in a Court of Law, nor shall anything herein preclude the State from taking any action which it may deem necessary against any student.

Alternative options for resolving disputes 11.0

Disciplinary action and penalties is an option of the last resort for maintaining an atmosphere where learning can take place effectively. The larger objective of Riara University is to achieve positive character formation through education. Students are expected to willingly participate in creating a community in which differences are resolved amicably. One approach of achieving this is to engage in transparent dialogue with all officers and colleagues. This requires that students cultivate an attitude of open-mindedness and goodwill towards all other members of Riara University Community.

Riara University shall facilitate this approach by putting in place a **mentoring programme** to assist students and staff address issues.

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I don't think there's anything in the compromise that means that there's a clash of ethics. Pete Singer

Participation of the Students' Union 12.0

There shall be a Students' Organization. The Students' Organization will actively participate in the implementation and improvement of the stipulations of the Rules and Regulations for Student Conduct and Discipline, including selection of student members of the SDC.

In order to help address other student expectations, Riara University department of Student Welfare Services shall assist them to achieve their academic goals and adjust to the culture of University life by providing a network of support services.

Student Welfare Services 13.0

13.1 Mentoring Services

This will provide guidance and counselling in matters of social interaction and wellbeing. Academic counselling will assist in subject selection and career choices in order to reduce stress, anxiety, depression, and emotional imbalance.

13.2 Health Services

Riara University has made provision for medical insurance that caters for emergency on-site medical care to all its students. This includes ambulance services and transfer to the hospital.

The University is located just next door to some of the largest and best-equipped hospitals in the region, including Kenyatta National Hospital, The Nairobi Hospital, Nairobi West Hospital, and St Mary's Hospital-Langata, among others, where competent medical attention is available round the clock.

13.3 Accommodation

As a modern and fast-growing city, Nairobi offers a diverse array of student accommodation options. They include hostels and furnished and unfurnished apartments to various kinds of rental arrangements, and home stay.

13.4 Student Centre

To make life simpler for our students, Riara University will create a single hub for many of the activities and services needed to make the student experience as smooth as possible. The Riara University Students Centre is designed to host a wide range of student services, including mentoring, lounges, theatres and other spaces for creative and performing arts as well as career advice and information—all under one roof.

13.5 Sports

Creative and fun ways of learning are a part and parcel of an all-round education. Riara University offers an elaborate co-curricular programme that supports the physical, social and emotional growth of its students. Ultimately, RU intends to produce not just excellent academicians and professionals, but also to help mould among the finest sportsmen and sportswomen in the world.



Miscellaneous provisions 14.0

- 14.1 The University disclaims all responsibility for loss or damage to any property belonging to students or their guests while such property is on University premises.
- 14.2 The University Council, in consultation with the Senate reserves the right to change, amend or otherwise vary the stipulations contained in the Rules and Regulations for Student Conduct and Discipline at any time, and inform the students accordingly.

Appendix 1

Declaration by student

Rules and Regulations for Student Conduct and Discipline

All students must sign **two copies** of this document.

I have read and understood the stipulations contained in the Riara University Rules and Regulations for Student Conduct and Discipline and accept to abide by them.

Name _____

Admission Number _____

ID/Passport No _____

School _____

Department _____

Session _____

Telephone Number _____

Email address _____

Signature _____ Date _____

For Official Use:

Signature _____ Date _____

(Dean of Students)

Cc: Academic Registrar

Appendix 2: Student Bond of Good Conduct

A student shall sign **two copies** of this document

I _____ (Name), understand that:

1. These Rules and Regulations for Student Conduct and Discipline are not designed to prohibit interaction and other activities by students but instead to regulate and guide so that all interactions are carried out in a manner that is socially and morally acceptable, and to facilitate the creation of an environment which is conducive for the smooth operation of the University's activities.
2. That these Rules and Regulations for Student Conduct and Discipline are not negotiable.
3. I undertake to be of good behaviour as stipulated in the Rules and Regulations for Student Conduct and Discipline. Failure on my part to fulfil these requirements will result in the University taking action deemed necessary against me.
4. The University is at liberty to communicate any such disciplinary action taken to my parents/ sponsors/ Guardians.

Signature _____ Admission Number _____

National ID/Passport No _____ Date _____

Telephone Number _____

Email address _____

Witnessed _____ Date _____

(Dean of Students)

Cc: Academic Registrar

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